

State of California
California Regional Water Quality Control Board

Santa Ana Region

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ORDER NO. R8-2015-0005

**APPROVING ELSINORE VALLEY MUNICIPAL WATER DISTRICT'S
PRETREATMENT PROGRAM AND
AMENDING ORDER NO. R8-2013-0017, NPDES NO. CA8000027
WASTE DISCHARGE AND PRODUCER/USER RECLAMATION REQUIREMENTS
FOR
ELSINORE VALLEY MUNICIPAL WATER DISTRICT
REGIONAL WATER RECLAMATION FACILITY
RIVERSIDE COUNTY**

The California Regional Water Quality Control Board, Santa Ana Region, (hereinafter, Regional Board) finds that:

1. On September 13, 2013, the Regional Board adopted Order No. R8-2013-0017, prescribing Waste Discharge and Producer/User Reclamation Requirements for Elsinore Valley Municipal Water District's (hereinafter EVMWD or Discharger) Regional Water Reclamation Facility.
2. Special Provision VI.C.5.c. of Order No. R8-2013-0017 requires EVMWD to update as necessary and implement an acceptable pretreatment program, including its individual components. On December 20, 2004, EVMWD's Board of Directors adopted Ordinance No. 160, a Sewer Use Ordinance that includes the established Local Limits. In February 2006 EVMWD requested formal approval of their Pretreatment Program. On October 30, 2007 EVMWD again requested approval of their Pretreatment Program, as modified in response to Pretreatment Compliance Inspections. On March 13, 2014 EVMWD's Board of Directors adopted a final Enforcement Response Plan as a component of their Pretreatment Program.
3. It is appropriate to amend Order No. R8-2013-0017 to formally approve the Pretreatment Program and its components.
4. On January 10, 2014, EVMWD requested the addition of a discharge point to Order No. R8-2013-0017 so that they could discharge reclaimed water from the Regional Water Reclamation Facility to Lee Lake, in order to maintain the lake level. Figure 1 shows the location of Discharge Point 005 (DP-005) where the effluent will be discharged from the Regional Water Reclamation Facility into a 90+ year old agriculture water supply line (Ag Line). There may be leakage from the Ag Line that would end up in Temescal Creek. Order No. R8-2013-0017 specifies requirements for the discharge of reclaimed water to Temescal Creek. It is appropriate to add the new DP-005 to Order No. R8-2013-0017 and specify

that the effluent limits applicable to the Temescal Creek discharge, apply to the discharge to and from the Ag Line to Temescal Creek and Lee Lake.

5. This project involves the amendment of waste discharge requirements for existing facilities and, as such, is exempt from the California Environmental Quality Act (Public Resources Code, Section 21100 et. seq.) in accordance with Section 15301, Chapter 3, Title 14, California Code of Regulations.
6. The Regional Board has notified the Discharger and other interested parties of its intent to amend waste discharge requirements for the discharge and has provided them with an opportunity to submit their written comments and recommendations.
7. The Regional Board, in a public meeting, heard and considered all comments pertaining to the discharge.

IT IS HEREBY ORDERED that Order No. R8-2013-0017 is amended as follows:

1. The Discharger's Final Pretreatment Program dated October 30, 2007, including Ordinance No. 160, Regulations for Waste Discharge and Sewer Use, which also establishes Local Limits, and the March 13, 2014 Enforcement Response Plan, are hereby approved and shall become enforceable provisions of Order No. R8-2013-0017.
2. Special Provision C.5.c.1. is amended as follows, (deletions are struck out and additions are shaded):
 - 1) The Discharger shall update as necessary and implement an acceptable ~~its~~ approved pretreatment program in accordance with all Control Authority pretreatment requirements contained in 40 CFR Part 403, including any subsequent regulatory revisions to Part 403.
3. Section IX.B.5.c on page F-25 of the Fact Sheet is amended as follows, (deletions are struck out and additions are shaded):
 - c. Pretreatment Requirements: The treatment plant capacity is 8 mgd and ~~there are no significant industrial users within the service areas.~~ Consequently, the Discharger is required to implement an approved pretreatment program pursuant to Section 307 of the Federal Clean Water Act; Parts 35 and 403 of Title 40, Code of Federal Regulations (40 CFR 35 and 40 CFR 403); and/or Section 2233, Title 23, California Code of Regulations.
4. The Discharger is hereby authorized to discharge up to 8 million gallons per day (mgd) of tertiary treated wastewater to Lee Lake through the agricultural water supply line (Discharger Point 005, DP-005).

5. Table 2 of Order No. R8-2013-0017 is amended as follows, (additions are shaded):

Table 2: Discharge Locations and Recycled Water Use Areas

Discharge Point	Effluent Description	Discharge Point (Latitude)	Discharge Point (Longitude)	Receiving Water
001	Up to 8 mgd of Tertiary treated wastewater	33°41'5.20"	117°20'34.204"	Temescal Creek, Gunerson Pond and Constructed Wetlands, Warm Springs Valley Ground Water Management Zone (GMZ), and Lee Lake GMZ
002	Up to 8 mgd of Tertiary treated wastewater	33°40'50.51"	117°19'54.61"	Lake Elsinore
003	Tertiary treated wastewater for reclamation uses	Various	Various	Warm Springs Valley GMZ
004	Up to 8 mgd of Tertiary treated wastewater	33°41'2.84"	117°20'30.62"	Emergency Discharge to Temescal Creek, Gunerson Pond and Constructed Wetlands, Warm Springs Valley Ground Water Management Zone (GMZ), and Lee Lake GMZ
005	Up to 8 mgd of Tertiary treated wastewater	33°41'4.74"	117°20'33.91"	Agricultural Line discharge to Lee Lake, Temescal Creek, Warm Springs Valley Ground Water Management Zone (GMZ), and Lee Lake GMZ
S-001	Storm Water	33°40'59.36"	117°20'27.35"	Temescal Creek, Gunerson Pond and Constructed Wet-lands, Warm Springs Valley Ground Water Management Zone (GMZ), and Lee Lake GMZ
S-002	Storm Water	33°41'4.01"	117°20'32.96"	"
S-003	Storm Water	33°40'57.13"	117°20'23.74"	"
S-004	Storm Water	33°40'55.64"	117°20'21.89"	"

6. Table 5 of Order No. R8-2013-0017 is amended as follows, (additions are shaded):

Table 5: Basin Plan Beneficial Uses

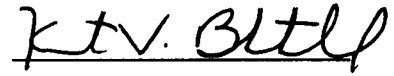
Discharge Point	Receiving Water Name	Beneficial Use(s)
001, 004, 005	Temescal Creek (including Lee Lake)	<u>Present or Potential:</u> Agricultural supply, industrial service supply, groundwater recharge, warm freshwater habitat; wildlife habitat; rare, threatened or endangered species; water contact recreation ¹ ; and non-contact water recreation. Excepted from municipal and domestic supply
	Warm Springs Valley GMZ and Lee Lake GMZ	<u>Present or Potential:</u> Municipal Supply, Industrial supply, Industrial Process Supply, and Agricultural supply
002	Lake Elsinore	<u>Present or Potential:</u> Water Contact Recreation, Non-contact water recreation, Warm water aquatic habitat, and Wildlife habitat
003	Warm Springs Valley Groundwater Management Zone	<u>Present or Potential:</u> Municipal Supply, Industrial Supply, Industrial Process Supply, and Agricultural supply

7. The requirements specified in Order No. R8-2013-0017 for discharges to Temescal Creek at DP-001 are hereby made applicable to DP-005, including Section III Discharge Prohibitions, Section IV Effluent Limitations and Discharge Specifications, Section V Receiving Water Limitations, Section VI Provisions, Section VII Compliance Determination and all Attachments to the Order.
8. The monitoring and reporting requirements for DP-005 shall be the same as DP-001.

¹ Access prohibited on some portions by Riverside County Flood Control.

9. All other terms and conditions of Order No. R8-2013-0017 shall remain unchanged.

I, Kurt V. Berchtold, Executive Officer, do hereby certify that the forgoing is a full, true, and correct copy of an order adopted by the California Regional Water Quality Control Board, Santa Ana Region, on January 30, 2015.

A handwritten signature in black ink, appearing to read "K.V. Berchtold", written over a horizontal line.

Kurt V. Berchtold
Executive Officer

Figure 1: DP-005 Location



**Final Effluent Discharge to Agricultural Pipeline for Lee Lake Replenishment
Regional Wastewater Reclamation Facility**